

**IN THE HIGH COURT OF SOUTH AFRICA  
GAUTENG DIVISION, PRETORIA**

**CASE NO: 2025 - 137857**

**In the matter between:**

**JACQUELINE FAUCITT**

**FIRST APPLICANT**

**AND**

**PETER ANDREW FAUCITT**

**FIRST RESPONDENT**

**DANIEL JAMES FAUCITT**

**SECOND RESPONDENT**

**AND OTHER RESPONDENTS**

*In re:*

*PETER ANDREW FAUCITT*

*APPLICANT*

*And*

*JACQUELINE FAUCITT*

*FIRST RESPONDENT*

*DANIEL JAMES FAUCITT*

*SECOND RESPONDENT*

*REGIMA WORLDWIDE DISTRIBUTION  
(PTY) LTD*

*THIRD RESPONDENT*

*REGIMA SKIN TREATMENTS CC*

*FOURTH RESPONDENT*

*VILLA VIA ARCADIA NO 2 CC*

*FIFTH RESPONDENT*

*STRATEGIC LOGISTICS CC*

*SIXTH RESPONDENT*

*FIRSTRAND BANK LTD t/a FIRST  
NATIONAL BANK*

*SEVENTH RESPONDENT*

*ABSA BANK LIMITED*

*EIGHT RESPONDENT*

*THE COMPANIES AND INTELLECTUAL  
PROPERTY COMMISSION*

*NINTH RESPONDENT*

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**NOTICE OF MOTION  
RECONSIDERATION APPLICATION**

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**BE PLEASED TO TAKE NOTICE THAT** the Applicant intends to apply to this Honourable Court on the **9<sup>th</sup> day of JUNE 2026** at **10h00** or at such time as the Court may direct, for an order in the following terms:

**URGENCY**

1. That the Applicant's non-compliance with the Uniform Rules of Court relating to forms, service and time periods be condoned and that this matter be heard as one of urgency in terms of Rule 6(12).

**RECONSIDERATION AND SETTING ASIDE**

2. That the Interim Order granted *ex parte* on 19 August 2025 under the hand of the Honourable Khumalo J, issued under the above case number be reconsidered;  
and
  - 2.1. Set aside in terms of Rule 6(12)(c), alternatively,
  - 2.2. Varied, to the extent necessary to:

- 2.2.1. restore the Applicant's lawful governance participation in the respondent entities;
  - 2.2.2. restore the Applicant's reasonable access to financial and operational information;
  - 2.2.3. restore the Applicant's reasonable remuneration and/or financial benefits historically enjoyed;
  - 2.2.4. regulate the operational arrangements concerning the stock facility situated at the erstwhile matrimonial home;
  - 2.2.5. impose such reasonable directive's, injunctions and or oversight mechanisms as the Court may deem appropriate, pending final adjudication of the prevailing disputes between the parties.
- 2.3. That, either as part of the variation or as an ancillary thereto, that the variation includes the following:
- 2.3.1. That the First Respondent is directed and or restrained from accessing the erstwhile matrimonial property situated at [address],
  - 2.3.2. That the Applicant is permitted to take such reasonable steps as may be necessary to secure her immediate and future safety,
  - 2.3.3. That an alternative operational arrangement is made for the collection of stock at the matrimonial property to give effect to the terms of the order made herein.

### **3. ACCESS TO FINANCIAL INFORMATION**

- 3.1. Directing the Sixth and or the Seventh and or the First Respondent to provide the Applicant with:

- 3.1.1. Bank statements of the Third to the Fifth Respondent's, respectively, with effect from the 1 June 2025 to the date of the Order,
- 3.1.2. Within 24 hours of the order having been made.
- 3.1.3. Thereafter, provide the Applicant with the bank statements of each of the referred accounts, held with the Sixth and or Seventh Respondent, on a monthly basis as and when the statements are due or as the Applicant may require from time to time.
- 3.1.4. That the First Respondent be directed to provide the Applicant, within 24 hours of the order having been made, with the relevant: -
  - 3.1.4.1. VAT submissions;
  - 3.1.4.2. financial statements;
  - 3.1.4.3. payroll summaries;
  - 3.1.4.4. any other operational financial information reasonably required for governance and patrimonial protection.

#### **4. INDEPENDENT AUDIT AND OR OVERSIGHT (IF NECESSARY)**

- 4.1. That, should it be deemed appropriate, an independent Chartered Accountant nominated by SAICA be appointed to:
  - 4.1.1. review financial transparency across all the cited entities;
  - 4.1.2. verify and or recommend reasonable remuneration arrangements;
  - 4.1.3. assist in ensuring balanced governance oversight pending final adjudication.

4.2. That the costs associated with the appointment and duties of the accountant be paid by the respondent – companies.

## 5. COSTS

5.1. That the First Respondent be ordered to pay the costs of this application on the scale as between attorney and client, alternatively such costs as the Court deems appropriate.

## 6. FURTHER AND/OR ALTERNATIVE RELIEF

6.1. Granting the Applicant such further and/or alternative relief as the Court considers meet.

**TAKE NOTICE FURTHER** that the accompanying Affidavit of the Applicant, **JACQUELINE FAUCITT**, together with annexures, will be used in support of this application.

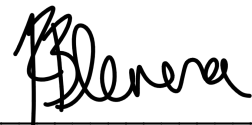
**TAKE FURTHER NOTICE** that in the event you intend to oppose the application, you are required to: -

1. Indicate your intended opposition by delivering a Notice of Intention to Oppose by no later than the **28<sup>th</sup> of MAY 2026**, at **12h00**,
2. The Notice of Intention to Oppose must provide the name and address of your appointed Attorney of Record, who will accept service on your behalf of all processes relevant to the application,

3. Deliver your affidavit setting out the reasons for opposing the application, by  
no later than the **2<sup>nd</sup> of June 2026** at **12h00** (Midday),
4. After which the Applicant will deliver a reply, if any.

**PLEASE TAKE FURTHER NOTICE** that the Applicant will accept service of any processes related to the application on email at [roslyn@lerenaattorneys.com](mailto:roslyn@lerenaattorneys.com)

Kindly enrol the matter accordingly.



**LERENA ATTORNEYS**

**Applicant's Attorneys**

Per: Ms R. Lerena

E: [roslyn@lerenaattorneys.com](mailto:roslyn@lerenaattorneys.com)

REF: R LERENA/F012

c/o

CAWOOD ATTORNEYS INC

305 MELK STREET

CNR MELK AND BRONKHORST STREETS

NIEUW MUCKLENUK

PRETORIA

REF: CAWOOD/

Email: [alitia@cawoodlaw.co.za](mailto:alitia@cawoodlaw.co.za)

**TO:**

**THE REGISTRAR OF THE HIGH COURT  
GAUTENG DIVISION – PRETORIA  
URGENT APPLICATIONS [CASE NO: 2025 – 137857]  
[RECONSIDERATION OF EX PARTE ORDER]**

***Courtonline Issue***

**AND TO:**

**ELLIOT ATTORNEYS**

***Attorneys for***

***FIRST RESPONDENT***

***Accepting on behalf of the***

***THIRD TO THE SIXTH RESPONDENT***

Office 12

Garsfontein Office Park

645 Jaqueline Drive  
Garsfontein  
PRETORIA  
TEL: 012 – 0125087  
EMAIL: [keegan@elliottattorneys.co.za](mailto:keegan@elliottattorneys.co.za)

Service by email

**AND TO:**

**FIRST NATIONAL BANK**

**Seventh Respondent**

4 Merchant Place  
Corner Fredman Drive and Rivonia Road  
Sandton  
South Africa

Email: [mpumi.netchipale@fnb.co.za](mailto:mpumi.netchipale@fnb.co.za)

Email: [litigation@firststrand.co.za](mailto:litigation@firststrand.co.za)

**AND TO**

**ABSA BANK**

**Eighth Respondent**

7th Floor  
Absa Towers West  
15 Troye Street  
Johannesburg  
2001  
South Africa.

Email: [Yashiv.Maharaj@absa.africa](mailto:Yashiv.Maharaj@absa.africa)

**AND TO**

**THE CIPC**

**Nineth Respondent**

The DTI Campus (Entfufukweni, Block F),  
77 Meintjies Street  
Sunnyside  
Pretoria  
0001

Email: [corporatelegalservices@cipc.co.za](mailto:corporatelegalservices@cipc.co.za)

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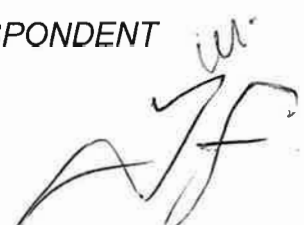
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SIXTH RESPONDENT

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FIRSTRAND BANK LTD t/a FIRST  
NATIONAL BANK

SEVENTH RESPONDENT

ABSA BANK LIMITED

EIGHT RESPONDENT

THE COMPANIES AND INTELLECTUAL  
PROPERTY COMMISSION

NINTH RESPONDENT

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**AFFIDAVIT IN SUPPORT OF  
APPLICATION IN TERMS OF RULE 6(12)(c)**

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I, the undersigned,

**JACQUELINE FAUCITT**

hereby make oath and state that:

**DEPONENT**

1. I am adult female businessperson and the **Applicant** herein.
2. I am a director of the Third Respondent, and a member of the Fourth, Fifth, and Sixth Respondent, the '**respondent companies**' or '**the businesses**.'
3. I am further a shareholder and or member value of the Respondent – companies, where applicable.



4. The content of this affidavit is within my personal knowledge and is both true and correct, unless the contrary is evident from the pleading herein, in which instance I have attached confirmation thereof.
5. Where I rely on statements of a legal nature, I do so on the advice of my legal representatives whose confirmatory affidavit is attached as **annexure 'RE1'**.

#### **THE APPLICANT**

6. As I pleaded before, I am the Applicant.
7. The details regarding my person and standing as pleaded in the Founding Affidavit are repeated here as if pleaded.

#### **THE RESPONDENTS**

8. The First Respondent is **PETER ANDREW FAUCITT**, my husband and a director and shareholder third Respondent and a member of the fourth, fifth, and sixth Respondents, whose full and further details as recorded in the founding affidavit are repeated herein.
9. The Second Respondent is **DANIEL JAMES FAUCITT**, an adult male businessperson, whose further details as pleaded in the founding affidavit, are repeated here under.
10. The remaining of the Respondents retain their citation as in the founding affidavit their respective details are repeated herein as if pleaded.

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11. The Third to the Seventh Respondents are the business enterprises 'owned' and or managed by the First Respondent and me, (***The companies***); and the Seventh and Eighth Respondents are the companies' bankers.
12. No order is sought against the Third to the Ninth Respondent except in the event of noncompliance with an order made and if they oppose the application.

### **JURISDICTION**

13. The Honourable Court maintains its jurisdiction in the matter premised on the *ex parte* Order made under the hand of the Honourable Khumalo J on the 19<sup>th</sup> of August 2025<sup>1</sup>.

### **SUMMARY OF THE RELIEF SOUGHT AND REASONS THEREFOR**

14. This is an urgent application for reconsideration of the Interim Order granted *ex parte* on 19 August 2025 under the above case number.
15. In support of this application the Applicant relies, in part, on the content of the affidavits and annexures previously filed in the various applications found in the case line court bundle.
16. To avoid prolixity, reference to the documents is made by incorporation insofar as they are relevant to the present reconsideration proceedings, unless prudence demands that it be extracted and annexed hereto specifically.

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<sup>1</sup> CL 0 – 1

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## BACKGROUND

17. The Interim Order was granted pending investigation into alleged governance and financial concerns and possible proceedings in terms of section 162 of the Companies Act.
18. However, the subsequent history of this matter demonstrates that the continued operation of the Interim Order has evolved beyond temporary preservation and now functions primarily as a mechanism of exclusion of the Applicant, and an instrument *in terrorem* against her.
19. Approximately 9 months have elapsed since the Interim Order was granted.
20. During this period: -
  - 20.1. The contemplated forensic investigation has been concluded,
  - 20.2. No meaningful delinquency proceedings have materialised against the Applicant,
  - 20.3. The forensic report itself does not establish fraud, theft, dishonesty or misconduct sufficient to justify the continued practical exclusion of the Applicant from the affairs of the respondent entities.
21. As is demonstrated herein after, despite what has been said before, the Applicant remains: -
  - 21.1. excluded from meaningful operational and governance participation;

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- 21.2. deprived of remuneration and financial support historically received from the businesses;
  - 21.3. denied meaningful financial transparency concerning the respondent entities; and
  - 21.4. subjected to repeated contempt-related litigation arising predominantly from the implementation and enforcement of the Interim Order itself.
22. At the same time, the First Respondent has instituted divorce proceedings seeking forfeiture and the appointment of a receiver and liquidator whilst retaining unilateral operational and financial control over the respondent entities.
23. The interim order has become a *de facto* mechanism of indefinite exclusion from governance, operations and economic participation, absent final adjudication.
24. The Applicant accordingly contends that the continued implementation of the Interim Order materially exceeds its original preservatory purpose, operates disproportionately and inequitably, and ought to be reconsidered and set aside.
25. *Alternatively*, if the Honourable Court is not inclined to set the Interim Order aside in its entirety, the Applicant seeks variation thereof to the extent necessary to:
- 25.1. restore regulated and lawful governance participation;

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- 25.2. restore reasonable access to financial and operational information;
  - 25.3. restore reasonable remuneration and/or financial benefits historically enjoyed by the Applicant;
  - 25.4. regulate the operational arrangements concerning the stock facility situated at the erstwhile matrimonial property; and impose such reasonable safeguards and oversight mechanisms as this Honourable Court may deem appropriate pending final adjudication.
26. The afore mentioned proposed relief is better particularized in the Notice of Motion, which ought to be read herein to the extent that it is necessary to do so.

**THE ORIGINAL PURPOSE OF THE INTERIM ORDER RE THE APPLICANT  
SPECIFICALLY**

27. The Interim Order was originally sought on concerns relating to:
- 27.1. alleged unauthorized payment of R 500 000.00 to the Second Respondent,
  - 27.2. the Applicant's alleged cognitive and/or psychological condition;
  - 27.3. allegations that the Applicant protected or enabled the Second Respondent.

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28. The order was expressly linked to a contemplated forensic investigation and possible proceedings under section 162 of the Companies Act.
29. The order was therefore inherently interim and preservatory in nature.
30. The order recognized the urgency of the audit to be done to establish the nature of the transactions complained of by the First Respondent.

### THE AUDIT REPORT

31. The audit report is found at **CL 033 – 21**.

- 31.1. I pause to mention that the audit was completed on the 11<sup>th</sup> of March 2026.

- 31.2. The report however only came to my attention on the 18<sup>th</sup> of March 2026, as an attachment to a supplementary affidavit in the prevailing contempt of court application at the time.<sup>2</sup>

- 31.3. The audit was conducted without the participation of myself or the First Respondent despite the terms of the Interim Order.

- 31.4. The report makes no reference to the '*unauthorized payment*' payment of R500 000.00 which I supposedly made to the Second Respondent as a *birthday gift*.

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<sup>2</sup> CL 033 – 21

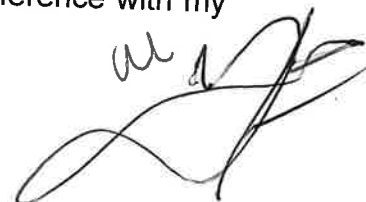
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- 31.5. Given that the transaction was a primary basis for obtaining the order, it is somewhat concerning that no reference thereto is made in the audit.
- 31.6. Neither the First Respondent nor the audit have provided a single shred of evidence to support of the allegation about the R 500 000,00 which I supposedly made, to the First Respondent, nor why it was unauthorised or why it required the First Respondent's authorisation in the first place.
- 31.7. The audit report does not provide any finding regarding my collusion with the Second Respondent in so far as the IT related expenses are concerned, or any other transactions alleged to have been unauthorised or unexplained.
- 31.8. I deny that the First Respondent ever needed to authorize payments and or transfers between accounts of the business or the directors.
- 31.9. I challenge the First Respondent to provide the necessary directors resolutions which establishes such authorisation.
- 31.10. In support of the afore, FNB's business relationship manager was responded to a meeting request regarding matters of unilateral authority, to which she responded on the 18<sup>th</sup> of June 2025, that: - *'The current mandate states that any of the directors of the company may act independently of each other. If the current mandate no longer suits the needs of the company, then the directors must change it by providing us with a resolution to that effect.'*

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- 31.11. The communication is attached hereto as **annexure 'RE2'** and is addressed to the First Respondent.
- 31.12. The email made it clear that the First Respondent's authority to transact was not required, that the directors were each vested with independent authority to transact on the businesses bank accounts.
- 31.13. Furthermore, the First Respondent's actions could only be sustained by a resolution which he has failed to obtain.
32. I further deny that I made the payment to the Second Respondent.
- 32.1. The money was transferred by the Second Respondent from the account of Strategic Logistics CC to himself on the 16<sup>th</sup> of July 2025.
- 32.2. I have attached a copy of the bank statement which clearly indicated who the transactor was on the date as well the proof of payment from FNB in respect of the payment made as **annexures 'RE3' and 'RE4'**.
- 32.3. Moreover, the transaction was not done without the knowledge of the First Respondent, and he was provided with the same documents attached hereto.
33. What is more, is that the transaction occurred a month after the First Respondent laid claim to and claimed my business bank cards, which implies that the cancellation of my business bank cards and the interference with my

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access to the banks, was not associated with the payment of R 500K to the First Respondent.

34. The allegations regarding the unexplained IT related expenses, refer to financial years, 2024 and 2025.<sup>3</sup>

34.1. These are then transactions in the financial year - 2023 to 2024 and the financial year – 2024 to 2025.

34.2. The bulk of these expenses occurred in the 2024 tax year, in the amount of R 6, 738007.47.

34.3. It begs the question why the companies' bookkeeper, Reinette Farrar or the companies' auditor failed to identify these 'expenses' at the time the companies' 'books' were being done for SARS in respect of the 2024 tax year.

35. The First Respondent's version contradicts the veracity of his concerns, in that;

35.1.1. Bandjies approached him in mid – June 2025<sup>4</sup>.

35.1.2. Bandjies noted after his attendance – in **July 2025** – that there were discrepancies on the company bank accounts<sup>5</sup>.

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<sup>3</sup> CL 001 – 20 par 8.1

<sup>4</sup> CL 001 – 17 par 7.1

<sup>5</sup> CL 001 – 17 par 7.2

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35.1.3. These payments all seemed to relate to the IT related expenses,<sup>6</sup>

35.1.4. *'The payments in question could not be explained by my wife and son',* and he accordingly cancelled my/our business bank cards in **June 2025**.<sup>7</sup>

35.2. The First Respondent laid claim to and cancelled my/our bank cards in on the **7<sup>th</sup> of June 2025**, allegedly premised on information of irregular payments which Bandjies only discovered in **July 2025**.

36. The afore mentioned is raised to demonstrate that, the reasons provided by the First Respondent, do not support the interim order any longer and or my exclusion from the business affairs, nor are the likely to support a basis on which to declare me delinquent.

37. The Interim Order nevertheless continues operating with indefinite practical effect to the sole and exclusive benefit of the First Respondent.

38. The First Respondent does not possess the voting power required to remove the Applicant through ordinary section 71 mechanisms.

38.1. I pause to mention that the First Respondent was not empowered by the interim order to make decisions about the respondent – companies which would generally require an ordinary resolution.

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<sup>6</sup> CL 001 – 17 par 7.4

<sup>7</sup> CL 001 – 7 par 7.5

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39. The First Respondent has stated that operational capital was moved from the respondent companies accounts to a savings account to earn *interest*.
40. The First Respondent furthermore claimed that the interim order: - *'was essential for the survival of the Third to the Sixth Respondent's ... otherwise have to be liquidated to my significant detriment and to the detriment of my wife and son who are sustained by those corporations – as well as to the detriment of the corporations.'*<sup>8</sup>
41. In the following paragraph<sup>9</sup> the First Respondent refers to money that has been *'misappropriated', and 'very irregular at that' and 'has already caused significant tax problems which will lead to insolvency'*.
42. During the week while preparing the affidavit, the following information came to my attention, the content of which appears to defeat the statements made by the First Respondent, in that: -

42.1. On the 2<sup>nd</sup> of July 2026, the account for RegimA Worldwide Distribution (Third Respondent) had a closing balance of R 5.3 million rand.

42.1.1. **Annexure 'RE5'.**

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<sup>8</sup> CL 001-29 par12.1

<sup>9</sup> CL 001 – 30 par 12.2

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42.2. FNB provided a consolidated report on 11 September 2025 showing that an amount of about R 10 million rand had been transferred from all the company current accounts forcing those accounts to default on creditors.

42.2.1. **Annexure 'RE6'**

42.3. **Annexure 'RE7' and 'RE8'** evidence that on the 11<sup>th</sup> of September 2025, the amounts of;

42.3.1. R 1,730 000,00 had been transferred from the Villa Via Arcadia account, leaving a balance of R 15, 329.68

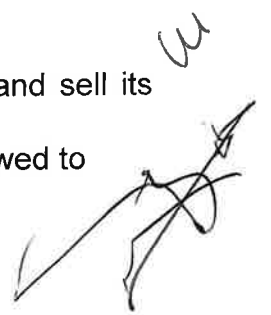
42.3.2. R 3,090,000.00 had been transferred from the RegimA Skin Main Account leaving a balance of R 9,140,90.

42.4. The raiding of these accounts is without any lawful premise and is not supported by the terms of the interim order.

42.5. Declined transactions to *Microsoft*, *GoDaddy*, *Google*, *Shopify*, which the First Respondent claimed were not legitimate business expenses.

42.5.1. The *Microsoft* payments relate to recurring subscriptions on the various Microsoft products used across all the various companies as well as *Google* and *GoDaddy*.

42.5.2. The companies use the *Shopify* platform to market and sell its products across the globe, and these payments are owed to *Shopify* for the use of their services and platform.

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- 42.5.3. The default on the payments affects the operational viability of a sales platform the companies' have used to sell its products.
- 42.5.4. I pause to mention that *Shopify* was instrumental in keeping the business afloat during the Covid Pandemic when we were unable to trade normally. The platform was maintained thereafter.
- 42.6. The First Respondent has referred to ABSA accounts<sup>10</sup> in further pleadings, which accounts are under the exclusive control of the companies' bookkeeper, an employee, Reinette Farrar, who has no fiduciary duties to companies, but has absolute control over it finances.
43. Such decisions are susceptible to being declared void and will result in severe prejudice to the operation and reputation of the company.
44. Furthermore, the unilateral transfer of operational capital and causing company accounts to default on creditors' payments is severely prejudicial to the legitimate interests of the companies and their financial integrity.

#### **RULE 6(12)(C) AND RECONSIDERATION**

45. The Interim Order was granted *ex parte* in the absence of the Applicant and the Second Respondent.

46. Rule 6(12)(c) expressly permits reconsideration of orders granted in the absence of an affected party.
47. The Court is entitled to consider:
- 47.1. subsequent developments;
  - 47.2. changed circumstances;
  - 47.3. the ongoing operation and effect of the order;
  - 47.4. issues of proportionality;
  - 47.5. issues of oppression and imbalance; and
  - 47.6. whether the continued operation of the order remains justified.
48. The prevailing circumstances differ materially from those existing when the Interim Order was originally granted.
49. The continued implementation of the Interim Order has evolved into an indefinite and disproportionate exclusionary governance mechanism operating substantially beyond its original preservatory purpose.
50. The continued implementation of the Interim Order has accordingly become functionally equivalent to my removal as a director without compliance with section 71 and without final adjudication under section 162.

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51. Furthermore, I believe the provisions of clause 2.6 of the interim order cannot be implemented indefinitely without any lawful basis supporting it.
52. The aforesaid control is temporary and establishes a certain measure of urgency to restore corporate controls.
53. The First Respondent has not made any effort to comply with his fiduciary duty in respect of the companies control and administration; one such duty being that he is required to act in accordance with the principles of good faith.
54. The content of the clause may have empowered the First Respondent to take unilateral control of the companies account and trade thereon with impunity, but it did not empower the First Respondent to do so without transparency and to the exclusion of myself and or the Second Respondent.
55. In so far as the First Respondent relies on the terms of the interim order to have taken exclusionary and unilateral control of the company's finances, without any transparency, the order is no longer serving the collective interests of the parties, but has become disproportionate, which supports a reconsideration of the order.

#### **FINANCIAL TRANSPARENCY AND BANKING RECORDS**

56. Since approximately June 2025, the Applicant has been excluded from the companies' operations and transparency regarding the financial interests and management.

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57. The Applicant has not been provided with current bank statements, management accounts, VAT submissions; financial statements, payroll summaries or meaningful operational financial information.
58. Requests for these documents, especially the bank account statements and the management accounts, have been denied under threat of contempt proceedings and or arrest.
59. I remain a director, shareholder/member and patrimonial stakeholder.
60. Access to financial information is not interference. It is an incident of lawful governance participation and necessary for the discharge of fiduciary duties.
61. I repeat the incidents referred to in the preceding paragraphs.
62. From the previous applications, with reference to my opposing affidavits filed therein, there is sufficient evidence to support my awareness of:
- 62.1. unilateral banking changes,<sup>11</sup>
- 62.2. movement of large amounts of money in single transactions between account; <sup>12</sup>

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<sup>11</sup> CL 016-016 para 75

<sup>12</sup> CL 016 – 016, supra

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62.3. communications to customers and clients to change customer payment instructions<sup>13</sup>;

62.4. redirection of communications and domains<sup>14</sup>.

63. The First Respondent continues to redirect and communicate with clients to make payments into different accounts under the guise of strategic restructuring, which requires a resolution and is not permitted in terms of the Interim Order.

64. The afore is evidenced by the attached **annexure 'RE9'**, being a circular sent to the companies' clients, dated the 21<sup>st</sup> of May 2026.

65. I require financial transparency because the companies represent the bulk of the patrimonial estate which is at issue as part of the divorce summons.

66. The First Respondent and I are married in community of property. I am unable to know or protect my interest in the combined estate for the purposes of providing a proper response to the calculation thereof.

67. At present, I have clear and present anticipation that the First Respondent is taking advantage of my exclusion to affect changes to the matrimonial property value and or divest me of my interests therein.

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<sup>13</sup> CL 016 – 016, supra

<sup>14</sup> Supra

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68. If for no other reason, the interim order ought to clarify and or address my inability to have the necessary information I am entitled to possess.

**THE NEED FOR INDEPENDENT FINANCIAL OVERSIGHT AND OR AUDIT**

69. The refusal to provide adequate financial disclosure materially prejudices the Applicant.
70. Furthermore, the audit failed to provide any clarity in respect of the allegations made by the First Respondent and the Applicant has no real knowledge of the status of the finances of the companies.
71. The respondent companies have been under the unilateral and exclusive control of the First Respondent for the past 9 months.
72. Given the breakdown in trust presently existing between the parties, the Applicant suggests that some degree of reasonable independent oversight and or a more comprehensive audit may be appropriate, pending final adjudication.
73. There is no prejudice to any party or the general well being of companies with the appointment of such an individual. The appointment will not be indefinite, but for a specific period and for a specific purpose.
74. If it appears prudent and the parties are unable to agree, the Applicant accordingly seeks the appointment of an independent chartered accountant nominated through SAICA to:

74.1.1. review financial transparency;

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74.1.2. verify reasonable remuneration arrangements; and

74.1.3. assist in ensuring balanced governance oversight pending final adjudication.

## REMUNERATION AND CONTINUED FINANCIAL ABUSE

75. I have historically derived my income and financial support from the respondent entities.

76. The First Respondent undertook to ensure that I would '*continue to receive my present remuneration*'.<sup>15</sup>

77. The First Respondent acknowledged in the founding affidavit that I have no other source of income other than remuneration and benefits derived from the businesses<sup>16</sup> by stating that; - '*... she has no other source of income other than her remuneration by the third to the sixth respondents*'<sup>17</sup>

78. The First Respondent further acknowledged that, after approximately February 2024<sup>18</sup>, the parties no longer received conventional salary but rather received director remuneration, drawings, dividends and/or drawdowns from the Villa Via Arcadia CC loan account.

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<sup>15</sup> CL 001 - 33

<sup>16</sup> CL 011 – 127

<sup>17</sup> CL 001 – 19 paragraph 7.18

<sup>18</sup> Supra

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79. The loan accounts hold on average an amount of R 10 million rand for each director.

80. The First Respondent's confirmed<sup>19</sup> that: -

*'... instead receiving our director's remuneration as and when required through either: 1. A draw down on the Villa Via Arcadia No 22 loan account (which allows each of us plus – minus R10 million) which attracts zero income tax or 2. A dividend payment from RegimA Skin Treatments which attracts a 20% dividend tax.'* ( **See Annexure 'RE10'**)

81. The issue is not whether the remuneration was technically structured as salary, drawings, dividends, loan-account access or benefits.

82. I historically enjoyed regular financial benefit from the respondent entities pursuant to the longstanding operational arrangements between the parties, which the First Respondent undertook to maintain when he applied for the interim order.

83. Because of the order, the First Respondent has vested himself with complete and unfettered control over the finances of the company, has excluded me from knowing what the general situation is and has proceeded to utilize company resources to litigate against me, while refusing to allow me access to the same resources.

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<sup>19</sup> CL 011 – 129

84. The First Respondent has nevertheless denied all my requests for money. My requests have been met with derision, in that; -

*"It is notable that the first respondent's opposition, which has been alluded to more than once in her affidavit, seems based solely on her issues with her 'salary'.<sup>20</sup> 'and 'there is no basis therefor; sadly, the first respondent seems to be deluded.<sup>21</sup>*

85. Further to the afore, the First Respondent has relied on the order in furtherance of my complete alienation from accessing the most basic aspects of the companies in which I have an equal share.

86. On the 7<sup>th</sup> June 2025, the First Respondent laid claim to my bank cards and cancelled my online banking access details.

- 86.1. The premise for this drastic step was to 'ensure that *'they are not permitted to participate in the financial administration of the corporations in question until this matter has been finally determined.*'<sup>22</sup>

- 86.2. Having use of a debit card or credit card, historically issued to me to fund day to day expenses incurred, does not amount to *financial administration*, nor can it affect the operational integrity of the businesses.

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<sup>20</sup> CL 001 - 23

<sup>21</sup> CL 017 -23 (1<sup>st</sup> Respondent's replying affidavit in the November Urgent)

<sup>22</sup> CL 001 – 33 paragraph 14.4 Founding Affidavit

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87. The First Respondent's concern was that I could access the companies accounts at will and that I had the unfettered ability to transact in large amounts, like transferring the R 500 000,00 to the Second Respondent as an alleged *act of defiance*.
88. The harm he intended to prevent and the prejudice to the financial interest of the companies, is not affected by my possession and use of a bank card, from which I able to fund her daily living costs.
89. The prolonged financial starvation the First Respondent has subjected me to defeats the veracity of his initial concerns for my best interests.
90. In November 2025, my erstwhile attorney, Mr R Pottas, dispatched a letter to the First Respondent requesting the Applicant's unpaid '*salary*' the Applicant had not received since June 2025.
91. In his reply on the 2<sup>nd</sup> of December 2025, the First Respondent failed to respond to the request to re – instate my monthly remuneration – instead proceeded play on semantics, by stating that I had never received a '*salary*'.
92. The response referred to is attached as **annexure 'RE11'**.
93. A further request was made for a draw down from my loan account for an amount of R 500 000.00.
94. At the time I needed the money to pay my attorneys' accounts as the First Respondent had launched two applications against me, of which one was

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alleging me to be in contempt of the interim order, refused to settle the attorneys' accounts from company funds.

95. The First Respondent's reply, attached as **annexure 'RE12'**, was that the: -  
*'entities did not have sufficient cash flow, the amount was detrimental to the entities and that I had already taken R 1 000 000,00 against my loan account since August.'*

96. The following clearly illustrates that the First Respondent made a unilateral decision to withhold funds from me, because I had stopped co – operating with his agenda, in that: -

96.1. The First Respondent made a payment from the *Villa Via Arcadia* account of R300 000.00 to ENS, on the 26<sup>th</sup> of August 2025,

96.2. The First Respondent paid R 90 000.00 from *RegimA Skin Treatments* account to Elliot Attorneys, his attorney of record, on the 11<sup>th</sup> of September 2025.

97. I dispute the reasons provided by the First Respondent in so far as lack of funding is available to me, and for the following reasons:

97.1. The companies are actively trading. This is supported by the circular hereabove which is redirecting payments to other entities as recent as the 21<sup>st</sup> of May 2026.

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- 97.2. The First Respondent and me each had a loan account with R 10 million allocated to each.
- 97.3. I had used R 1 million and the balance would have reduced to R 9 million.
- 97.4. The allegation that there was no money to support a drawdown of R500k infers that the funds in my loan account had been used for something else, without my knowledge or permission.
- 97.5. If one were to accept that my loan account had been used to fund operational expenses, then a *bona fide* expectation would justify an expectation that the First Respondent would have made a payment when funds became available.
98. It is also clear from what I have alluded to here in, that;
- 98.1. On the 7<sup>th</sup> of June 2025, the companies had been able to support the First Respondent in having the use of credit cards and banks cards,
- 98.2. On the 19<sup>th</sup> of July 2025, Strategic Logistics CC account had a balance of R 652,122,50;
- 98.3. In Augst 2025, the Villa Arcadia account was able to pay R 300 000,00 to ENS.
- 98.4. In September 2025, the Fourth Respondent was able to pay Elliot Attorneys, R 90 000.00.

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- 98.5. On the 11<sup>th</sup> of September 2025, FNB's consolidated report shows a combined amount of R 10 million rand being transferred across several accounts.
99. Since September 2025 to the present, the First Respondent has launched 3 contempt of court applications on the urgent roll and has applied for leave to appeal the last dismissal.
100. In each instance he was represented by Counsel.
101. It is reasonable to infer that the First Respondent has used company funds to pay the legal fees incurred in the instances mentioned.
102. The inference extends to support the fact that the First Respondent has been using company funds only he has access to, to litigate me into submission.
103. The First Respondent has raised several contempt of court applications since November 2025, which I have had to oppose from personal funds and what I have been able to lend.
104. Despite being equal shareholders, the First Respondent has refused me funds to secure my legal representatives which has affected my ability to maintain consistent legal representation, which has placed me in a precarious position.
105. The First Respondent has effectively been using 'our' money to litigate against me.

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106. The First Respondent's version that there were no funds available for my legal fees, draws on my loan account and or my monthly remuneration, is not supported by any financial evidence nor genuinely linked to preservation of the business.
107. The First Respondent has vested himself with complete control over the companies' finances and has:
- 107.1. Cancelled my bank cards and cut me off financially, and
- 107.2. Stopped the payment of any remuneration, being my remuneration of R100 000.00 per month, draws from my loan account and or dividends.
108. I do not have any proof of the amounts referred to herein above, as the bank statements have historically been delivered to the bookkeeper, Reinette Farrar, and my access to these statements are enjoined by the order, albeit on the First Respondent's interpretation thereof.
109. As of August 2025, I became eligible to receive a UK – pension in the amount of £2600,00 (*pound sterling*) per month; the payment of which was diverted into the First Respondent's UK bank account each month.
110. I have not received any benefit therefrom.
111. Again, I have no proof thereof and or correspondence related thereto is with the First Respondent.

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112. The First Respondent has complete and unfettered control over the finances of the company, has utilized company resources to litigate against me, while refusing to allow me access to the same resources.
113. The prejudice flowing from this abuse is immediate and irreparable.
114. The order does not support the afore mentioned financial abuse perpetrated on the Applicant.
115. In the instance, I advance that it would then be prudent to appoint an independent auditor to establish a reasonable remuneration for me and the ability of the companies to pay for it.

#### **DIVORCE PROCEEDINGS AND PATRIMONIAL PREJUDICE**

116. The First Respondent has instituted divorce proceedings and seeks forfeiture relief against the Applicant and the appointment of a receiver and/or liquidator in that context.
117. The respondent entities constitute substantial patrimonial value within the joint estate.
118. The plea in the action is due, and I am required to state facts, not speculation, specifically in so far as the forfeiture is claimed and the appointment of a receiver and liquidator.
119. The Applicant's exclusion from financial information, governance participation; and operational oversight materially prejudices my ability to respond to

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forfeiture claims, assess the joint estate, complete proper financial disclosure and protect her patrimonial interests.

120. Furthermore, I have demonstrated a clear pattern of financial abuse which has affected my ability to appoint legal representation to defend my interests.
121. The First Respondent's control over the companies' assets and cash flow creates a clear apprehension that he is likely dissipating from joint matrimonial assets and affecting their value to the combined estate.
122. This apprehension has become even more real with reference to the recent circular under 'RE'.
123. The First Respondent's exclusive control is not supported by interim order, which he never the less deploys at will, and which is an abuse of the authority the Court entrusted the First Respondent with.
124. The divorce context is relevant because the continued operation of the Interim Order has direct patrimonial consequences.

#### **THE FIRST RESPONDENT'S LACK OF TRUST**

125. The First Respondent has repeatedly alleged that I cannot be trusted.
126. The issue is not whether the Applicant can be or is trusted by the First Respondent, but whether the continued exclusion of a duly appointed director from the affairs of the companies, is lawful and justified.

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127. The removal or restriction of the Applicant is governed by the Companies Act.
128. Such removal is punitive and requires proper procedures to be followed.
129. The interim order has evolved into a de facto suspension/removal mechanism without the procedural safeguards contemplated in section 71 and without final adjudication under section 162.
130. The interim relief granted herein has become disproportionate, indefinite, and functionally equivalent to removal or suspension without final adjudication.
131. Whether I am trustworthy or not cannot be used to permit the Interim Order to operate indefinitely as a substitute for final delinquency or removal proceedings.
132. As is evident from the various contempt applications, each instance has been raised because of the ambiguous and liberal interpretation of clause 2.5, which the First Respondent has contended is a bar against any conduct, as in, me attending to the training sessions, engaging with clients who are interested in the products.
133. Consequently, under threat and expectation of further applications, I have resigned myself to remain at my residence until the order is either disposed of or clarified and varied.
134. The interim order has evolved into a de facto suspension/removal mechanism without the procedural safeguards contemplated in section 71 and without final adjudication under section 162.

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135. The interim relief granted herein has become disproportionate, indefinite, and functionally equivalent to removal or suspension without final adjudication.

**THE FIRST RESPONDENT'S CONTINUED THREATS AND INTEFERENCE**

136. Since November 2025, the First Respondent has instituted repeated contempt-related proceedings against the Applicant.
137. Significantly, these contempt applications did not arise because the Applicant attempted unlawfully to obtain money, access bank accounts or dissipate assets.
138. The disputes arose predominantly from operational conflicts, relating to stock collection and dispatch from the storage facility situated at the erstwhile matrimonial property, and the Applicant's apparent manner in engaging the employee(s) of the company.
139. The storage facility is a space which forms part of the matrimonial home.
140. Since January 2026, I have been living alone since the First Respondent elected to vacate the matrimonial home.
141. The stock room is directly adjacent to the living areas of the residence.
142. The space was converted into a stock room at a time when the other site was being plagued by theft.

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143. To provide some perspective of the layout, I have attached photographs of the space and its proximity to the living areas, as **annexures 'RE13'**.
144. I have an interest in ensuring that stock is properly received and inventoried, and then properly packed and dispatched to maintain proper product management.
145. The First Respondent continually attends at the property to collect stock.
146. As I have been barred from accessing any of the companies', I am at the house permanently as I have maintained a home office there over the years. I also used the space to see clients who have an interest in the products and request individual private consultations.
147. However, I have been unable to have these consultations considering the threats made against me that it is contrary to the terms of the order.
148. On or about 11 May 2026, correspondence was received alleging interference with a stock take, improper stock supply and changing of locks.
149. The letter is attached as **annexure 'RE14'**.
150. The allegations are denied in so far as,
- 150.1. Any stock take cannot be undertaken at a moment's notice, while stock orders are pending.

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150.2. Products were dispatched to the UK entities, which are a part of the corporation and which the First Respondent and I have a vested interest. These items were ordered by them and required delivery.

150.3. No locks have been changed. The First Respondent has unfettered access to the property which he accesses at will and without any interference.

151. On or about 15 May 2026, the First Respondent again attended at the property and demanded immediate release of a large amount of stock.

152. At the time, there were two gentleman present, who are appointed to attend to receipt, inventory and dispatch of stock and were busy filling another order for one of the companies' clients.

153. The First Respondent was requested to provide a reasonable time to prepare his order and to ensure that the stock is properly recorded.

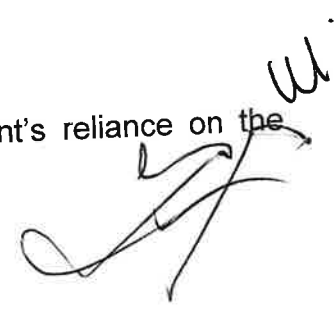
154. The First Respondent responded aggressively and further threatened:

154.1. To cancel of my medical aid, which is paid by the businesses,

154.2. That he intended to sell the businesses;

154.3. That he would not pay the two permanent workers at the storeroom; and

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- 154.4. That further operational changes would be implemented at the property in that he intended to place Reinette Farrar, the bookkeeper and her sister at the house to ensure compliance.
155. I pause to mention that Farrar has protection orders against me and the one employee, Arthur Mphande, which are currently pending in Germiston.
156. The application for harassment was attached to the pleadings in the previous contempt application. On a proper reading thereof, the application was based on statements I made in my opposing affidavit in respect of the November 2025 application.
157. In terms of these applications, I am prohibited from approaching my workspace in the head office building at Van Buuren Road, where she has an office.
158. Farrar has also laid criminal charges against me at the Bedordview SAPS alleging that I had incited one of the workers to assault her at work, despite me not being present at the time.
159. The afore further illustrates a clear and present danger that I will be forced to defend myself in different forums should I not relent in these instances.
160. The letter from the First Respondent's attorney is once again a veiled threat of further litigation which I cannot afford.
161. These instances are predicated on the First Respondent's reliance on the Interim Order.
- 

162. The current operational arrangement has become inherently conflict-generating and has resulted in repeated litigation, operational confrontation and threats of contempt proceedings arising from ordinary stock collection and dispatch processes.
163. The continued operation of the Interim Order has increasingly extended beyond its original preservatory purpose and has become the mechanism through which ongoing operational conflict, litigation escalation and exclusionary conduct continue to arise between the parties.
164. I am requesting that in the event the interim order is set aside, the court grants an order restricting the First Respondent's access to the property. There are other staff members who can collect stock orders.

#### **RECONSIDERATION AND VARIATION OF THE ORDER**

165. The Applicant respectfully submits that sufficient grounds exist for reconsideration and setting aside of the Interim Order.
166. The order has now:
- 166.1. outlived its original purpose;
  - 166.2. operated for an extended period absent final adjudication;
  - 166.3. become strategically exclusionary; and
  - 166.4. produced ongoing disproportionate prejudice,

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166.5. has permitted to proliferation of litigation.

167. The forensic report does not justify the continued indefinite exclusion of the Applicant.

168. The practical effect of the order has become:

168.1. **de facto** suspension;

168.2. economic exclusion;

168.3. operational exclusion; and

168.4. deprivation of governance participation.

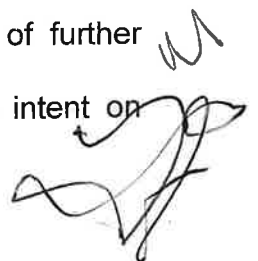
169. The continued operation of the Interim Order is no longer proportionate to its original preservative rationale.

### REQUIREMENTS FOR INTERIM RELIEF

170. Insofar as portions of the relief sought may constitute interim interdictory relief, the Applicant respectfully states that:

170.1. the Applicant has a clear alternatively prima facie right arising from her status as director, shareholder/member and patrimonial stakeholder;

170.2. the Applicant has suffered and continues to suffer actual and ongoing prejudice and or there is a real and present anticipation of further contempt proceedings to follow or the First Respondent's intent on

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placing persons at my home, who have pending proceedings against me.

170.3. Considering the pending divorce action, I ought to be permitted to exercise access to the financial information of the companies in so far as it supports my right to properly defend myself in the action.

170.4. The Applicant has no adequate alternative remedy; and

170.5. The balance of convenience favours regulated participation and oversight rather than indefinite exclusion.

170.6. There is no prejudice to the companies' interests or the interests of the First Respondent if such an injunction provides for restrictions to my person and my safety and promote lawful rights and privileges.

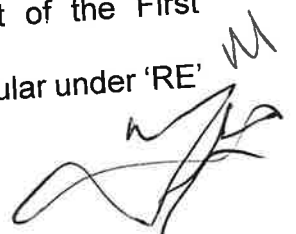
171. The Applicant relies in this regard on the principles articulated in *Setlogelo v Setlogelo* 1914 AD 221 and *Webster v Mitchell* 1948 (1) SA 1186 (W).

### URGENCY

172. This application is urgent within the meaning of Rule 6(12).

173. The urgency of the application was materially triggered by the disclosure of the forensic audit report on the 18<sup>th</sup> of March 2026.

174. The urgency has found support in the subsequent conduct of the First Respondent on the 11<sup>th</sup> and 15<sup>th</sup> of May 2026 as well as the circular under 'RE'

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which support a clear and present danger concerning my interests in the companies.

175. Initially, at the time the audit report had become available, I could not consider the content or consult and be advised thereon as I was midst the contempt application proceedings in the Honourable Court.

176. Shortly after the date of the judgement, my attorneys withdrew and the First Respondent filed an application for leave to appeal the dismissal of the contempt application.

177. I was able to secure my current attorney at the last minute who assisted me in opposing the application for leave to appeal.

178. The counsel who represented me in the leave to appeal application, assisted me with audit report. It was decided that we should wait for the judgment on the leave to appeal, before deciding on further steps.

179. The leave to appeal judgement was received on the 04<sup>th</sup> of May 2026 and is enclosed in the bundle at **CL 034 -22**.

180. I wish to advise that the urgency has not dissipated because of the lapse of time.

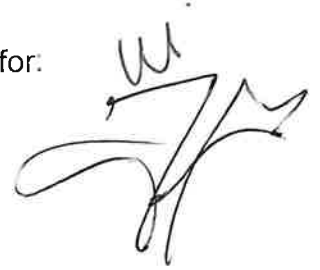
181. I did not remain supine but took decisions regarding this application which considered the pending proceedings, the nature of the matter as well as the nature of the relief I wanted to claim as well as to avoid unnecessary litigation.



- 185.2. the Applicant's previous attorneys withdrew due to funding constraints;
- 185.3. the Applicant was required to obtain and consider the forensic report;
- 185.4. and the Applicant thereafter obtained new legal representation and proceeded with the present application.
186. The Applicant cannot obtain substantial redress in due course because the prejudice complained of is ongoing, cumulative and incapable of adequate retrospective correction.
187. It is humbly submitted that the requirements of Rule 6(12) have been complied with and the Honourable Court is requested to accept the application onto its roll.

### **CONCLUSION**

188. Whatever interim concerns may initially have existed, the continued implementation of the Interim Order has now become strategically exclusionary, disproportionate and inconsistent with the temporary preservative rationale upon which the relief was originally granted.
189. The Interim Order has evolved into an indefinite exclusionary governance mechanism unsupported by final findings and operating substantially beyond its original purpose.
190. The Applicant has accordingly demonstrated sufficient grounds for:

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182. The continued conduct of the First Respondent has further informed my urgent approach.

183. Having considered the report together with the subsequent litigation between the parties, the Applicant respectfully contends that the continued indefinite operation of the Interim Order is no longer justified.

184. The urgency is further amplified by:

184.1. the continued withholding of remuneration and financial benefits historically enjoyed by the Applicant;

184.2. the Applicant's exclusion from financial transparency and operational participation;

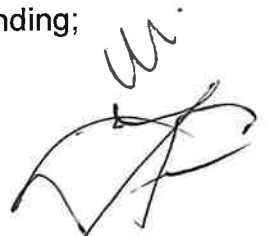
184.3. repeated contempt-related litigation arising from ordinary operational disputes; and

184.4. the continued operational conflict arising from the present implementation of the Interim Order,

184.5. the interests which are exposed by the pending divorce action and the plea that is due.

185. To the extent that delay may appear to have occurred:

185.1. contempt proceedings and related applications remained pending;

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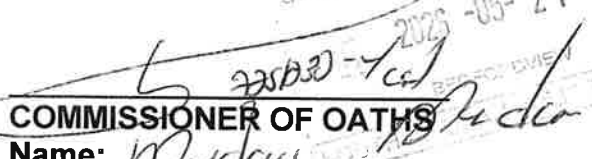
- 190.1. reconsideration and setting aside of the Interim Order;
191. alternatively, variation thereof, and the restoration of regulated governance participation and financial transparency pending final adjudication.

### CONCLUSION

192. I pray the application be granted on the terms set out in the Notice of Motion with costs concomitant thereof and on a scale C in the event of opposition.

  
JACQUELINE FAUCITT

I hereby certify that the deponent has acknowledged that she knows and understands the contents of this affidavit which was signed and sworn before me at Bedfordview on this 21 day of May 2026, the regulations contained in Government Notice no. R 1258 of 21 July 1972, as amended, having been complied with, the deponent having acknowledged that she understands the contents of this affidavit, has no objection to taking the prescribed oath and considers the oath to be binding on her conscience.

  
COMMISSIONER OF OATHS

Name: Mudau

Designation: Magistrate

Address: 60 Van buuren road

